

Here, Defendants did not comply with the procedural requirements under Code of Civil Procedure section 386.5. In support of the motion, Defendants' counsel submits his declaration with each Defendants' declaration attached. Neither counsel's declaration, nor any of Defendants' declarations, submit that the Defendants are neutral stakeholders with no personal claim to the disputed funds as required under Code of Civil Procedure section 386.5. Also, the stated policy limit appears to be inconsistent with the policy documents provided. Defendants state that the personal injury policy limit per occurrence is \$30,000 and cites to the attachment to counsel's declaration, Exhibit A, in support. Upon reviewing the 50 pages of documents, the court was unable verify that at the time of the incident Defendants' personal injury policy limit was \$30,000. Because the declarations fail to state that Defendants are merely stakeholders and the amount to deposit is inconsistent with the evidence, the procedural requirements for an interpleader have not been met.

Further, Defendants do not appear to be mere stakeholders. The Complaint filed by Jesus Alejandro Campos, Karina Marroquin-Ramirez, and Benjamin Jacob Benavides include a negligence cause of action against Baljeet Singh as the driver and Jagat Shakya and Gurjeet Singh as the owners of the vehicle that allegedly caused the vehicle collision. The Complaint filed by Sukhvinder Singh also includes a negligence cause of action against Defendants. Defendants do not state by way of argument or declaration how the case would be able to proceed in Defendants absence where it is alleged that they are directly involved in the incident that gave rise to the action. As such, Defendants are not mere stakeholders and the instant interpleader may not be granted.

The court finds that Defendants failed to demonstrate that they are mere stakeholders, and that the interpleader is procedurally defective. The motion to order the interpleader and discharge Defendants from liability for the funds is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Alexandra Seifert v. Paul Michaelides**
Superior Court Case No. 25CECG03846

Hearing Date: August 11, 2026 (Dept. 501)

Motions: Plaintiff Alexandra Seifert's Motion to Compel Further
Discovery and Sanctions

Tentative Ruling:

To grant Plaintiff's motion to compel further responses from defendant Paul Leon Michaelides to Form Interrogatories, Nos., 2.11, 2.12, 2.13, 12.2, 12.3, and 12.6 and 14.1

To grant Plaintiff's motion to compel further responses from defendant Paul L. Michaelides, D.D.S., M.Sc.D., Inc. to Production of Documents, Nos. 1-7, modified as applicable.

Defendants Paul Leon Michaelides and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. shall provide further verified responses without objection, to plaintiff within 30 days of service of the order by the clerk.

To deny Plaintiff's motion to compel further responses to Special Interrogatories, Nos. 1-14 and Form Interrogatories, No. 4.1 and 14.1.

To deny defendants' request for sanctions.

Explanation:

Plaintiff Alexandra Seifert ("Seifert" or "plaintiff") files this motion to compel further responses from defendants, Paul Leon Michaelides ("Michaelides") and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. ("DDS") (collectively "defendants.") In particular, Seifert seeks to compel further to Seifert's Special Interrogatories, Set One and Form Interrogatories from Michaelides, and to compel further for Request for Production, Set One from DDS.

Seifert initially filed her complaint against defendants arising from a visit to Dr. Michaelides' dental office on August 15, 2022 when COVID-19 restrictions were in place including a mask mandate for healthcare settings, where Seifert eventually left the premises, and not necessarily through her own volition. ("Incident.")

Combination of Motions

As a preliminary matter, defendants argue that Seifert's combination of three discovery motions against two defendants into one motion is improper and accordingly, Seifert's motions should be denied. (Defendants' Opposition, pg. 5:1-4.)

The only authority defendants cite is a secondary source, which does not state that such motions must automatically be denied.

Combining motions allows the moving party to avoid paying the requisite filing fees. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal. App. 4th 457, 460.) Nonetheless, filing fees are owed for each motion. Here, this issue is moot considering Seifert has a fee waiver. (Seifert June 29, 2026 Decl., ¶10.) Furthermore, the combination of these motions has no effect on the substance of these motions.

Defendants' Objections

Defendants' objections to all purported references to defendants' responses to Seifert's discovery and all purported references to Seifert's Form Interrogatories, Set One, are overruled. Seifert filed a supplemental declaration on June 29, 2026, providing the discovery in question, in compliance with California Rule of Court 3.1306, subdivision (c).

Standard to Compel Further Responses to Interrogatories and Requests for Production

A party may move for an order compelling further responses to interrogatories on the grounds that: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The Civil Procedure Code instructs the responding party that: "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (Code Civ. Proc., § 2030.220)

"Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (*Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76; see Code Civ. Proc., § 2023.010, subd. (f) [making evasive response to discovery is misuse of discovery process].) Where the question is specific and explicit, it is improper to provide only a portion of the information sought or "deftly worded conclusionary answers designed to evade a series of explicit questions." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) "If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control." (*Id.* at p. 782.)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

With respect to the production of documents, a party may move for an order compelling further responses to requests for the production of documents on the grounds that: (1) a statement of compliance with the request is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The burden is on the moving party to “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).)

For all of the motions at issue, California Rules of Court, rule 3.1345 subdivision (c)(2) requires the separate statement to include the text of each response, answer, or objection, and any further responses or answers. The separate statement is supposed to provide all the information necessary to understand each discovery request and all the responses to it that are at issue. This burden “is met simply by a fact-specific showing of relevance.” (*TBG Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Here, the Court finds that the requirements under California Rules of Court, rule 3.1345 have been met.

Special Interrogatories

Here, plaintiff seeks to compel further responses to Special Interrogatories, Nos., 1 through 15.

Special Interrogatories Nos. 1-4

Special Interrogatories 1 through 4 pertain to the legal authority obligating defendants to impose masking requirements and take plaintiff's vital signs, as of August 15, 2022. Seifert moves to compel further responses arguing that the responses are incomplete and evasive. Michaelides' responses to these interrogatories are that the legal authorities are equally available to plaintiff, under Code of Civil Procedure section 2030.230.

The answer is complete. Plaintiff has access to the same legal authority and Michaelides states he was relying on the California Department of Health requirements that were current as of August 15, 2022. Accordingly, Seifert's motion is denied.

Special Interrogatories Nos. 5, 12, 14

Special Interrogatories 5, 12 and 14 ask Michaelides to identify specific individuals. Defendants provided specific names. Seifert moves to compel further on the grounds the responses are incomplete as the responses do not provide the individual's roles, job titles, and contact information, in accordance with Code of Civil Procedure section 2030.220, subdivision (a).

Code of Civil Procedure section 2030.220, subdivision (a) provides that “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.”

Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide “deftly worded conclusionary answers designed to evade a series of explicit questions.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.)

Here, defendants specifically provided names sought by plaintiff. Plaintiff's special interrogatories did not seek individual's roles, job titles, and contact information. Accordingly, the motion is denied. As set forth below, should the information be requested later, roles, job titles must be provided. If counsel agrees to facilitate contact with current employees, that is all that need be provided. If they are no longer so employed then the last known telephone number must be provided.

Special Interrogatory No. 6

Special Interrogatory 6 asks Michaelides detailed questions pertaining to Michaelides physical or mental capabilities, and the effects on Michaelides, thereafter:

Special Interrogatory 6

Describe in detail all facts, including the chain of events, that cause you to lose your ability - meaning you are no longer physically or mentally capable or are otherwise impaired - to see patients without first obtaining their vital signs.

Response to Special Interrogatory 6

Objection on the grounds the interrogatory is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. No contention is being made that I am physically or mentally incapable of seeing a patient without their vital signs having been taken.

Seifert moves to compel further asserting Michaelides' response is incomplete. Here, Michaelides directly answered Seifert's question. Accordingly, the motion is denied.

Special Interrogatory No. 7

Special Interrogatory 7 asks Michaelides to describe the “grave danger” that Seifert presented for not being masked during the Covid pandemic. Seifert moves to compel further pertaining to Special Interrogatory, no. 7, contending that the response is “evasive” because Michaelides “... provides a narrative description of what allegedly occurred at the incident.” (Seifert's moving papers, pg. 9:7-17.)

“The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general. (Citation omitted.) (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.)

Seifert falls far short of her mark in demonstrating that Michaelides' response was "evasive." During the telephone conversation between defendants' attorney, and Seifert, Seifert contended that the response was "improper" because it was a "narrative", was "odd", "reads like a book" and that it was just "obvious" the response was improper. (Gibson Decl., ¶15, Ex. 1. See also Seifert's Separate Statement in Support of Motion to Compel Further, Special Interrogatory, no. 7.) An answer in narrative form does not deflect from the content of the answer provided. Accordingly, the motion is denied.

Special Interrogatories Nos. 8, 9

Special Interrogatories 8 and 9 ask Michaelides what Seifert's verbally abusive "exact verbiage" during the Incident. Seifert moves to compel further arguing that defendant's answers are evasive and incomplete.

Michaelides simply stated *without objection* that he does not know the "exact verbiage" that was used by Seifert as he was not present at the time, and stated who was there. Here, Michaelides provides a comprehensive answer to Seifert's special interrogatories. Accordingly, Seifert's motion is denied.

Special Interrogatory No. 10

Special Interrogatory 10 asks for all law enforcement reference numbers Michaelides' staff used with respect to Seifert's conduct. Seifert moves to compel further because the response is evasive and incomplete. Michaelides stated he is "not aware of a law enforcement reference number." Here, Michaelides' answer is sufficient. Accordingly, Seifert's motion is denied.

Special Interrogatories 11, 13, 15

Special Interrogatories 11, 13 and 15 ask Michaelides' to provide details about Seifert's threatening conduct at the time of the incident which caused her eviction from DDS' place of business. Seifert moves to compel further because the responses are evasive and incomplete. Michaelides provided sufficient answers to Seifert's special interrogatories, and states explicitly what he does not know. Accordingly, Seifert's motion is denied.

Form Interrogatories

Here, plaintiff seeks to compel further responses to Form Interrogatories, Nos., 2.11, 2.12, 2.13, 4.1, 12.2, 12.3, 12.6, and 14.1.

Form Interrogatory No. 2.11

This interrogatory seeks the name, address, phone number and duties of who Michaelides worked for. Michaelides only provided his employer's name. Seifert seeks to compel further because the response is incomplete. Michaelides did not object. Accordingly, Seifert's motion is granted.

Form Interrogatory Nos. 2.12, 2.13

These interrogatories seek information whether Michaelides or anyone with respect to the Incident suffered any emotional or mental disabilities, or took any substances, such as drugs or alcohol at the time of the incident. Seifert seeks to compel further on the basis that Michaelides' answers are incomplete. Michaelides only answered on behalf of himself. If he has no knowledge, he must so state.

Accordingly, the motion is granted.

Form Interrogatory No. 4.1

Seifert seeks to compel further to Form Interrogatory 4.1 regarding Michaelides insurance coverage. Here, Michaelides provided all relevant information. Accordingly, the motion is denied.

Form Interrogatories Nos. 12.2, 12.3 12.6

Seifert moves to compel further with respect to Form Interrogatories 12.2, 12.3 and 12.6, which pertain to whether Michaelides or anyone on behalf of Michaelides interviewed anyone concerning the Incident, or has any independent reports. Michaelides asserts privilege.

"If an objection is based on a claim of privilege, the particular privilege invoked shall be stated." (Code Civ. Proc., § 2031.240, subd. (b)(2).) "If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240, subd. (c)(1).)

Here, the requests do not pertain to the contents of any alleged reports made, but only the existence of whether any alleged reports exist. Accordingly, the motion is granted.

Form Interrogatory No. 14.1

Form Interrogatory 14.1 concerns the legal authority obligating defendants to impose masking requirements. Defendant's response to this interrogatory is that "Plaintiff refused to comply with the California Department of Public Health indoor masking requirement for healthcare settings in effect at the time." Michaelides objects under Code of Civil Procedure section 2030.230.

For the same reasons discussed above, Seifert is requesting the legal authorities defendant relied on. He did so. Therefore the motion is denied.

Compel Further Responses to Production of Documents

Here, plaintiff seeks to compel further responses to Request for Production of Documents 1 through 7.

Request for Production of Documents Nos. 1-3,5,6

In Request for Production of Documents, numbers 1-3, 5 and 6, Seifert requests all documents related to the Incident in question. Defendants agreed to provide Exhibit 1 with request to Request for Production of Document, Number 1, by agreeing to provide “the responsive” documents, while objecting to providing other documents based on privilege.

Where Seifert argues that production is insufficient and incomplete, defendants argue they provided Exhibit 1. The crux of this dispute appears to be whether Exhibit 1 encompasses everything that defendants have in their possession, or whether defendants have made a determination of what is responsive on their own.

A motion to compel further responses to a document request is proper where the moving party believes the statement of compliance is incomplete, or a representation of inability to comply is inadequate, evasive and/or an objection is without merit or too general. (Code Civ. Proc., § 2031.310 (a).) The motion must show good cause to justify the discovery and must be supported by a meet and confer declaration. (*Id.* at subd. (b).)

The scope of discovery is liberally construed in favor of disclosure “as a matter of right unless statutory or public policy considerations clearly prohibit it.” (*Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal. 2d 355, 377-378.) The broad scope of permissible discovery includes “any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence”. (Code Civ. Proc., § 2017.010.)

Here, defendants’ response to Request for Production of Documents, number 1 provides that DDS “agree[] to produce the responsive documents in its possession, custody, or control. Please refer to Exhibit 1.” (Seifert’s Supplemental Decl., Exhibit F, Response to Request for Production No. 1, emphasis added.) Each of the other requests, where applicable, references Exhibit 1. The Court finds that such statements satisfy the requirements under Code of Civil Procedure section 2031.220.

With respect to objections related to privilege, the crux of the controversy is that defendants have not produced a privilege log. “It is elementary in civil discovery that if documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection “shall” be supplied. (Code Civ. Proc., § 2031.240.) This feature of the Discovery Act prevents secret positions from being taken to justify the withholding of documents claimed to be secret.” (*Roche v. Hyde* (2020) 51 Cal. App. 5th 757, 814.)

“When confronted with a deficient privilege log that fails to provide the necessary information to rule on attorney-client and work product objections, a trial court may order the responding party to provide a further privilege log that includes the necessary information to rule on those objections. . .” (*Catalina Island Yacht Club v. Superior Ct.* (2015) 242 Cal. App. 4th 1116, 1120 (“Catalina”).) “A privilege log must identify with

particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit. (§ 2031.240, subds. (b) & (c); *Wellpoint Health Networks, Inc. v. Superior Court* (1997) 59 Cal.App.4th 110, 130.) The precise information required for an adequate privilege log will vary from case to case based on the privileges asserted and the underlying circumstances. In general, however, a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted." (*Catalina*, supra, 242 Cal. App. 4th at 1130.)

Based on the foregoing, Seifert's motion is granted in part. Defendants are to provide a privilege log.

Request for Production of Document No. 4

Seifert moves to compel further with respect "[a]ll documents containing identification information for staff involved in plaintiff's visit, such as names, contact information and job description." Defendants assert privacy rights for not disclosing this information.

Under *Hill v. Nat'l Collegiate Athletic Assn.* (1994) 7 Cal. 4th 1, 35-37, the party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (Id.) The party seeking the information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (Id. at 37-40.)

California's Constitutional right to privacy protects against the unwarranted, compelled disclosure of various private or sensitive information regarding one's personal life. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) This includes employment records. (See *Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 526; and *El Dorado Savings & Loan Assn. v. Superior Court* (1987) 190 Cal.App.3d 342, 345.)

However, any privacy rights must be balanced against the need for discovery. (See *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250-1251.) Request for Production number 4 seeks only the names of the individuals, contact information and job descriptions of staff involved. (See *Puerto*, supra, 158 Cal.App.4th at p. 1254 [stating the contact information for potential witnesses is 'basic civil discovery' and 'neither unduly personal nor overly intrusive,' and that remains so regardless of the number of potential witnesses at issue.] Accordingly, the Court grants plaintiff's motion to compel further with respect to Request for Production number 4, but only as to names and job description so long as counsel for defendant agrees to contact the staff involved should Plaintiff wish to depose them. If counsel does not have the information or does not agree to contact the involved staff, then last known telephone numbers must be provided.

Request for Production of Document No. 7

Seifert moves to compel further with respect to documents pertaining to this dental office's policies regarding ADA Disabilities Accommodations policies, procedures and training materials as defendants' responses are deficient and incomplete. Defendants argue that plaintiff's request for the requested documents is seeking the current policies rather than as of the date of the incident, on August 15, 2022.

The Court grants Seifert's motion in part, where defendants' responses and production of documents shall be limited to those as of the date of the incident, on August 15, 2022.

Sanctions

Defendants seek \$5,000 in sanctions against Seifert with respect to these motions. The court must impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

Under these circumstances, the Court declines to award sanctions. The Court finds that Seifert acted with substantial justification, and made reasonable arguments in support of her position. No sanctions are appropriate.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)